

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201702958	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 04/11/2017 4:50 PM	Location of Incident: In the backyard of § 87(2)(b)	18 Mo. SOL 10/11/2018	Precinct: 120
Date/Time CV Reported Tue, 04/11/2017 9:12 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/17/2017 10:56 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Shaw	20841	946241	120 PCT
2. DTS Rudy Anzalone	5617	945472	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Shaw	Force: Police Officer Matthew Shaw used physical force against § 87(2)(b)	A . Alleged Victim Unavailable
B . DTS Rudy Anzalone	Force: Police Officer Rudy Anzalone used physical force against § 87(2)(b)	B . Alleged Victim Unavailable
C . POM Matthew Shaw	Force: Police Officer Matthew Shaw used physical force against § 87(2)(b)	C . Alleged Victim Unavailable

Case Summary

On April 11, 2017, Sgt. Joseph Pollari of the 120th Precinct filed this complaint via phone with IAB, generating IAB Log number 17-13112. He did so, because the victim in this case, § 87(2)(b) sustained an injury that required treatment with stitches. On April 17, 2017, the CCRB received this case under IAB Log number 12-13296. It did not include any contact information for § 87(2)(b) aside from his name.

On April 18, 2017, a search of CTS in conjunction with BADS yielded three addresses and a phone number for § 87(2)(b) as well as a phone number. On April 18, 2017, May 1, 2017, and May 9, 2017, a letter was sent to each of these three addresses. On May 2, 2017 and May 12, 2017, two of these letters were returned as undeliverable by the U.S. Postal Service. Between April 18, 2017, and May 16, 2017, this phone number was called six times. Each time, an automated message stating that the number was out of service was reached.

On April 24, 2017, a Lexis Nexis search revealed eight additional home addresses for § 87(2)(b) as well as two additional phone numbers. On April 24, 2017, May 1, 2017, and May 9, 2017, a Please Call letter was sent to each of these addresses. On May 8, 2017 and May 11, 2017, two of those letters were returned from one of these addresses. On May 12, 2017, a letter was returned from another of these addresses. On May 16, 2017, one letter was returned from a third address.

Between April 24, 2017 and May 8, 2017, four voice messages were left at one of the numbers obtained from the Lexis Nexis search. It was called two additional times, on May 11, 2017 and May 15, 2017, and an automated message stating that the messaging system was full was reached. The other number obtained from the Lexis Nexis search was also called six times between April 24, 2017 and May 15, 2017. On April 24, 2017, and May 1, 2017, a busy signal was reached. Neither Whitepages, CLEAR, nor DMV searches provided any additional contact information. To date, § 87(2)(b) has not responded to any CCRB contact attempts.

On May 19, 2017, a search of the New York City Department of Correction website confirmed that § 87(2)(b) is not incarcerated. § 87(2)(g) it is recommended that this case be closed as **victim uncooperative**.

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

